

HONORABLE DAVID W. CHRISTEL

**IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WASHINGTON
AT TACOMA**

MICHELLE ENGLES,
Plaintiff,

v.

CROSSROADS HOUSING, INC., CITY OF
SHELTON, CALVIN MORAN, JUSTIN
WHITLEY, CHRIS DOWNS, and GARY
PORTILLO

Defendants.

No. 3:24-cv-05834-DWC

CONSENT DECREE

Plaintiff and Defendant City of Shelton agree that this Court has jurisdiction over the subject matter of the claims alleged, and that by their signatures below they consent to entry of this Consent Decree. Defendant agrees that they will not oppose the entry of this Consent Decree. Defendant waives any rights that they may have to appeal from this Consent Decree.

Plaintiff Michelle Engles rented an apartment in Shelton, Washington. She alleges that her tenancy was covered under the Residential Landlord Tenant Act. This action concerned allegations by the plaintiff that Defendant City of Shelton wrongfully removed her from her home and in the process denied her of her due process rights, violated her rights to substantive due process, violated her rights to be free of warrantless search and seizure under both the United States Constitution and the Washington Constitution, wrongfully evicted her, and committed the torts of trespass and assault against her. Accordingly:

The Court hereby ORDERS, ADJUGES, AND DECREES:

1. This Court has jurisdiction over the parties to this Decree and jurisdiction over the subject matter pursuant to 42 USC § 1983 and 28 USC §1367.

2. This Consent Decree is binding on Ms. Engles and on the City of Shelton and their agents, employees, representatives, successors, and subsidiaries. (hereinafter, collectively, “Defendant”). Pursuant to the agreement of the parties, all claims against the individual defendants, Calvin Moran, Justin Whitley, Chris Downs, and Gary Portillo are dismissed with prejudice.

3. Defendant City of Shelton is enjoined from assisting with the forcible eviction or removal of tenants from a dwelling who claim an entitlement to reside there, absent a court order. A dwelling is a structure or that part of a structure which is used as a home, residence, or sleeping place by one person or by two or more persons maintaining a common household, including but not limited to single-family residences and units of multiplexes, apartment buildings, mobile homes and transitional housing.

4. This Order is not intended to include persons lawfully arrested for the commission of a crime other than trespass, nor is this request intended to cover persons excluded from a residence pursuant to a valid criminal no-contact order or civil protection order.

5. The terms of this Order shall be enforceable by any resident in the City of Shelton demonstrating an injury by reason of a violation of this Order.

6. The parties to this Consent Decree agree that any person living within the city of Shelton claiming an injury by a violation of this Decree is an intended third-party beneficiary of this Decree.

7. Defendant shall incorporate the terms of this Consent Decree into the appropriate

1 police or city policy manual within 180 days of the entry of this Decree. No city policy, practice
2 or custom shall supersede the terms of the Decree for the extent of its duration.

3 8. Should any person be required to enforce the provisions of this Consent Decree,
4 the Court may award the prevailing party reasonable attorneys' costs or fees in the event the
5 Court finds a violation of this Consent Decree.

6 9. A person seeking to enforce this Decree may bring a motion for contempt under
7 this action. The Court may award such person his, her or their damages, costs and fees for
8 moving to enforce this decree, in addition to any other remedies available under the law.

9 10. This Consent Decree may be executed in two or more counterparts, each of which
10 shall constitute an original instrument and all of which together shall constitute one, and the
11 same, settlement. The person signing this settlement represents that they have the authority to
12 enter this settlement on behalf of the respective parties they represent and that this settlement
13 shall be binding upon the parties hereto.

14 11. The Court shall interpret enforcement of this Consent Decree consistent with
15 principles of contract interpretation and Title 59 RCW.

16 12. Where any provision of this Order requires Defendant to provide any
17 documentation of compliance with this Order to Plaintiff's attorneys, Defendant shall provide
18 such documentation in electronic format via email to Plaintiff's attorneys email at
19 carrie.graf@nwjustice.org or any other email or address later provided by the Plaintiff's
20 attorneys.

21 13. The Court shall retain jurisdiction for the duration of this Consent Decree to
22 enforce its terms. This Consent Decree shall remain in effect for a period of five (5) years unless
23 modified or terminated by the Court for good cause shown, including but not limited to a change
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1 in the law applicable to evictions under Title 59 RCW, after which time this matter shall be
2 dismissed.

3 SO ORDERED, this 2nd day of April, 2025.

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7 David W. Christel
8 United States Magistrate Judge
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